

		Plaintiff also argues these costs represent unallowable “photocopying” charges under section 1033.5, subdivision (b)(3). Plaintiff’s argument lacks merit. Fees incurred for preparing, issuing, and serving deposition subpoenas for production of business records through a registered process server are recoverable under section 1033.5(a)(4), and are not subject to the copying exclusions of subdivision (b)(3). (<i>Naser, supra</i>, 227 Cal.App.4th at pp. 576-577.) Plaintiff next argues the costs are duplicative since subpoenas were served on the same providers multiple times. OCDE contends the subpoenas were not duplicative because Plaintiff received ongoing treatment, physical therapy, and imaging throughout the litigation requiring sequential subpoenas to capture newly generated records. (Beherns Decl., ¶ 10.) OCDE contends the service dates listed in Attachment 5d, ranging from July 2024 to April 2025, demonstrates a pattern of discovery aimed at monitoring Plaintiff’s medical condition and damages. This is a reasonable explanation. In her reply, Plaintiff does not dispute receiving ongoing treatment throughout this litigation. However, the service dates show that multiple subpoenas were issued to the same provider on the same day or a few days apart. Therefore, the many of the subpoenas appear to be duplicate as Plaintiff contends. For example, three subpoenas were issued to Mission Hospital Regional Medical Center on 11/8/24 (\$245.79), 11/11/24 (\$102.90), and 11/25/24 (\$202.50). Similarly, two subpoenas were issued to Select Physical Therapy on 11/6/24 (\$88.13 and \$191.78). Neither Attachment 5d nor OCDE’s opposition explains why multiple subpoenas were issued to the same provider on the same day or within a few days. As such, OCDE has not established all of the subpoenas were reasonably necessary. In her reply, Plaintiff argues for the first time that Defendant Capistrano Unified School District issued 22 of the subpoenas, not OCDE. (See Remick Decl. iso Reply, ¶¶ 4-5, Exs. B-C.) Because Plaintiff did not raise this point in her motion, she did not adequately place it in issue. Because OCDE failed to adequately explain the apparent duplicate subpoenas, the motion is GRANTED in part as to Item 5 – service of process costs. The motion is DENIED as to the Item 4 – deposition costs. Defendant Orange County Department of Education’s memorandum of costs is ORDERED taxed in the amount of \$1,346.83.
7	Interinsurance Exchange of the Automobile Club vs. Taylor 2023-01322290	Defendant’s Motion to Amend the Judgment is DENIED. Defendant Christopher Michael Taylor’s Motion to Vacate Judgment is DENIED.

	Motion to Amend and Vacate Judgment	The filing of a proof of service that complies with the statutory standards creates a rebuttable presumption that the service was proper. (<i>Floveyor Internat., Ltd. v. Superior Court</i> (1997) 59 Cal.App.4th 789, 795.) Plaintiff filed a proof of substitute service on April 15, 2024. (ROA 19.) Defendant has failed to rebut the presumption of valid substitute service. Thus, Defendant’s Motion is denied. Defendant Christopher Michael Taylor’s Motion to Amend the Judgment is DENIED as moot. Plaintiff filed an acknowledgment of full satisfaction of judgment on June 23, 2026. Thus, the judgment is no longer at issue and Defendant’s Motion to amend the judgment is moot.
8	Shu v. Hyundai Motor America 2026-01540769 Motion to Compel Arbitration	Defendant Hyundai Motor America’s (“HMA”) motion to compel plaintiff Connie Shu to arbitrate her claims and to stay this action pending arbitration is GRANTED. HMA’s Request for Judicial Notice is GRANTED. HMA moves to compel arbitration under the: (1) Owner’s Handbook & Warranty Information (“Warranty”); and (2) Bluelink Connected Services Agreement (“CSA”). Existence of valid agreement to arbitrate: Plaintiff purchased a 2022 Hyundai IONIQ 5 (“Subject Vehicle”) on February 5, 2022. (Complaint, ¶ 6.) Plaintiff received a Warranty as part of the purchase which includes an agreement to arbitrate in Section 4. (Ameripour Decl., ¶ 3, Ex. 3, p. 12.) Plaintiff contends the Warranty was neither signed nor meaningfully negotiated by Plaintiff and it lacks the mutual assent required to form a binding arbitration agreement. (Opp., 2:8-9.) In a recent decision, <i>Kostandian v. American Honda Motor Co.</i> (2026) 120 Cal.App.5th 872 [2026 WL 1495175] (<i>Kostandian</i>), the Second Appellate District, Division Two, rejected the argument that the arbitration provision in a warranty booklet is not an agreement. Specifically, the court of appeal concluded appellants met their initial burden of establishing an arbitration agreement in the warranty booklet as to American Honda Motor because “[a]ppellants presented a copy of the agreement, stated the relevant terms thereof verbatim, and provided the necessary allegations. The burden therefore shifted to respondent to dispute the existence of an arbitration agreement as to American Honda Motor.” (<i>Id.</i> at *6.) In finding respondent failed to dispute he had an existing arbitration agreement with American Honda Motor in the warranty booklet, the court of appeal stated that “While respondent here posits there was no mutual assent since he did not receive the warranty booklet until after the sale was completed, no evidence was